NETI PRELIMS REVISION SERIES

Topic 08 | Constitutional vs. Statutory Bodies

नेति नेति — Less noise. More clarity.

Why this matters for Prelims: This topic appears in every Prelims paper — almost always in the matching pairs format (18–23% of the paper). UPSC does not ask "what is a constitutional body." It pairs bodies with their Article numbers, asks which ones can be abolished by Parliament without a constitutional amendment, tests the difference between what the Constitution says and what the law adds, and uses non-statutory bodies as wrong options in lists of statutory ones. The post-2020 shift to Statement I/II means composition and powers are now tested as causal pairs, not just facts.

The one-line test: Constitutional body = created by the Constitution itself (you need a constitutional amendment to abolish it). Statutory body = created by an Act of Parliament (a simple repeal removes it). Non-statutory body = created by executive order, Cabinet resolution, or notification — no legislation needed.

Independence mechanism: Constitutional bodies gain independence through: fixed tenure, removal only by impeachment/SC inquiry, salary charged to Consolidated Fund (not votable). Statutory bodies may or may not have these protections — UPSC tests which do and which don't.

Charged vs Voted: Charged on Consolidated Fund = Parliament cannot vote to reduce it. Salary of President, Judges, CAG, UPSC members, Election Commission = Charged. Most statutory body salaries = Voted. This distinction signals independence from Parliament.

THE THREE-TIER CLASSIFICATION — CONSTITUTIONAL, STATUTORY, NON-STATUTORY

Type	How Created	How Abolished	Key Implication
Constitutional Body	By the Constitution itself. Specific articles establish and define the body.	Only by Constitutional Amendment (2/3 majority + ratification where needed).	Parliament cannot remove it by ordinary legislation. Stronger protection. Salary typically charged to Consolidated Fund.
Statutory Body	By an Act of Parliament or State Legislature.	Parliament can repeal the Act by simple majority. More flexible.	Exists as long as the parent Act exists. May or may not have security of tenure. Independence depends on Act's provisions.
Non-Statutory Body	By executive order, Cabinet resolution, or government notification. No legislation.	Government can dissolve it by another executive order. No Parliamentary involvement needed.	Most vulnerable to political change. NITI Aayog, CBI, ED, NIA fall here. Despite operational importance, legally fragile.

NOTE: Power and legal status are independent. CBI is one of India's most powerful agencies but is non-statutory. UPSC exploits this gap — powerful ≠ statutory.

CONSTITUTIONAL BODIES — ARTICLE, COMPOSITION & INDEPENDENCE MECHANISMS

Body	Article	Composition	Independence Mechanism & UPSC-Tested Facts
Election Commission of India (ECI)	324	CEC + Election Commissioners (number not fixed by Constitution — decided by President)	CEC removal: same as SC judge (address of both Houses, special majority). EC removal: on CEC's recommendation only — NOT same as SC judge removal. Salary charged to Consolidated Fund (after 91st Amendment). CEC cannot be disadvantaged after appointment. ECs can be removed more easily than CEC — asymmetry is a UPSC trap. Was single-member until 1989 (T.N. Seshan era multi-member debate). Constitution does not mandate multi-member composition.
Union Public Service Commission (UPSC)	315–323	Chairman + Members (number by President; at least 1/2 must have 10 yrs govt service)	Removal: President on SC inquiry (Article 317). Salary charged to Consolidated Fund. Non-reappointment after tenure — cannot be influenced by government promise. Joint UPSC (JPSC): for two or more states on their request (Article 315). Parliament can create it. Tested in matching pairs. UPSC role: recruitment to All India Services and Central Services. It is advisory — government can reject its recommendations but must record reasons.
Comptroller & Auditor General (CAG)	148	Single officer — appointed by President	Removal: same as SC judge. Salary charged to Consolidated Fund. Not eligible for further govt office after retirement. Audits: Central Govt, State Govts, bodies receiving substantial govt grants (75%+ of income or >₹25 lakh). Does NOT audit private companies generally. Reports placed before Parliament (Consolidated Fund audit) and State Legislature (state accounts). CAG does not disallow expenditure — only reports. Executive action follows.
Finance Commission	280	Chairman + 4 members. Constituted every 5 years by President.	Recommends: (1) vertical devolution — Centre–state share of taxes, (2) horizontal devolution — among states, (3) grants-in-aid to states, (4) disaster management grants. Recommendations are advisory — not binding on government.

			15th Finance Commission (2021–26): 41% share to states (down from 42% — J&K reorganisation). Currently 16th FC constituted for 2026–31 under Arvind Panagariya. UPSC trap: Finance Commission ≠ Finance Ministry. Finance Commission is constitutional; Finance Ministry is executive.
Attorney General of India	76	Appointed by President. Must be qualified as SC judge.	First Law Officer of India. Advises government on legal matters. Right of audience in all courts. Member of Parliament proceedings — can speak but NOT vote. Holds office during pleasure of President (no fixed tenure, no formal removal procedure). NOT a full-time government servant — can take private practice (with restrictions). Solicitor General = Statutory, not constitutional. Additional SG = also statutory. Only AG is constitutional.
National Commissions for SCs/STs/OBCs/Minorities	338 / 338A / 338B / 338C (29th Amdt)	Chairperson + Vice-Chairperson + Members appointed by President	Article 338: National Commission for Scheduled Castes (NCSC). Article 338A: National Commission for Scheduled Tribes (NCST). Article 338B: National Commission for Backward Classes (NCBC) — added by 102nd Amendment 2018. Article 338C (proposed for minorities — not yet in Constitution; NCMEI is statutory under NCM Act). Powers: civil court powers to investigate complaints, summon persons, inspect records. Reports submitted to President. UPSC tests 338 vs 338A vs 338B distinction frequently.
Special Officer for Linguistic Minorities	350B	Single officer — appointed by President	Investigates matters relating to safeguards for linguistic minorities. Reports to President, laid before each House. Low frequency but appears in matching pairs.
Advocate General of State	165	Appointed by Governor. Must be qualified as HC judge.	State equivalent of Attorney General. Right of audience in all courts of state. Can attend state legislature proceedings but cannot vote. Holds office during Governor's pleasure.

NOTE: Comptroller General of Accounts (CGA) is NOT the same as CAG. CGA is a civil servant under Finance Ministry who maintains accounts. CAG audits those accounts. UPSC has used both in the same question.

STATUTORY BODIES — PARENT ACT, MINISTRY & KEY DISTINCTION

Body	Parent Act	Ministry	UPSC-Tested Fact
NHRC (National Human Rights Commission)	Protection of Human Rights Act, 1993	Home Affairs	Chairman must be retired CJI. Members: retired SC/HC judges. Can investigate suo motu. Cannot investigate armed forces directly — only seek report from MoD.
CVC (Central Vigilance Commission)	CVC Act, 2003	Personnel (PM's office area)	Superintendence over CBI in cases under Prevention of Corruption Act. Cannot superintend CBI in DSPE Act matters — that is MHA. Not an investigating agency itself. Chief Vigilance Commissioner: removal needs SC inquiry.
Lokpal	Lokpal and Lokayuktas Act, 2013	Personnel	Covers PM (with restrictions), Ministers, MPs, Group A–D central govt employees, and PSU heads. Chairman must be former CJI or SC judge or eminent person. NOT a constitutional body — statutory. First Lokpal: Justice Pinaki Chandra Ghose (2019).
CCI (Competition Commission of India)	Competition Act, 2002	Corporate Affairs	Regulates anti-competitive practices, mergers and acquisitions above threshold. Competition Amendment Act 2023: deal value threshold added (₹2,000 crore). Quasi-judicial body — orders appealable to NCLAT.
SEBI (Securities & Exchange Board of India)	SEBI Act, 1992	Finance	Regulates securities market. Has legislative (regulations), executive (enforcement), and quasi-judicial (adjudication) functions — UPSC tested this triple function. Orders appealable to SAT (Securities Appellate Tribunal).
RBI (Reserve Bank of India)	RBI Act, 1934	Finance	Statutory body — not constitutional. Central bank functions: monetary authority, banker to govt, banker to banks, regulator. Governor appointed by Centre. Not autonomous from government legally, though operationally independent.

IRDAI (Insurance Regulatory Authority)	IRDAI Act, 1999	Finance	Regulates insurance and re-insurance companies. Head office: Hyderabad. Merged with IRDA through 2015 amendment. Bima Sugam (insurance marketplace) — 2024 initiative.
PFRDA (Pension Fund Regulatory Authority)	PFRDA Act, 2013	Finance	Regulates National Pension System (NPS) and Atal Pension Yojana. Established by executive order in 2003; given statutory status in 2013. UPSC trap: "PFRDA is a constitutional body" — FALSE.
NCPCR (National Commission for Protection of Child Rights)	CPCR Act, 2005	Women & Child Development	Monitors child rights. Examines Right to Education implementation. Can inquire into complaints. Statutory, not constitutional. NCSC (constitutional) vs NCPCR (statutory) — pair tested.
NCMEI / NCM (National Commission for Minorities)	NCM Act, 1992	Minority Affairs	Notified minorities: Muslims, Christians, Sikhs, Buddhists, Parsis, Jains (6 communities). Statutory — NOT constitutional (no Article 338C yet). UPSC has tested whether it is constitutional.
National Green Tribunal (NGT)	NGT Act, 2010	Environment	Quasi-judicial body for environmental disputes. Applies "polluter pays" and "precautionary principle." Has suo motu powers. Decisions appealable to Supreme Court. Chairperson must be retired SC judge.
NCST / NCSC / NCBC	CONSTITUTIONAL (Arts. 338/338A/338B)	Tribal / Social Justice	Included here to prevent confusion — these are constitutional, not statutory. 102nd Amendment 2018 gave constitutional status to NCBC. Pre-2018, NCBC was statutory (BC Act 1993). This transition is a direct UPSC question.

NOTE: NHRC cannot investigate complaints more than 1 year old. It cannot investigate human rights violations by armed forces — it can only seek a report from the Ministry of Defence. Both restrictions have appeared as UPSC options.

NON-STATUTORY BODIES — CREATED BY EXECUTIVE ORDER (HIGH-TRAP ZONE)

Body	Created By	Why UPSC Tests It
NITI Aayog	Cabinet Resolution, January 2015 (replaced Planning Commission)	Non-statutory — no Act. Cannot allocate funds (unlike Planning Commission which allocated through Five-Year Plans). Acts as a think-tank. Governing Council: all state CMs + Lt Governors. Full-time members appointed by PM. Trap: "NITI Aayog is a constitutional body" — FALSE.
Planning Commission	Cabinet Resolution, 1950 (dissolved 2015)	Also non-statutory. Historical context: Five-Year Plans, Gadgil Formula, Tenth Plan etc. UPSC still uses it in matching pairs with NITI Aayog contrasts.
CBI (Central Bureau of Investigation)	Delhi Special Police Establishment (DSPE) Act, 1946 — but CBI itself by executive resolution of Home Ministry	CBI derives its powers from the DSPE Act but was not created by it — created by executive order. This makes CBI non-statutory. SC in Vineet Narain case (1997) ruled CBI must be insulated from executive interference. Consent of state required for CBI to investigate in that state.
ED (Enforcement Directorate)	Executive order under Finance Ministry; operates under FEMA 1999 and PMLA 2002	Investigates foreign exchange violations (FEMA) and money laundering (PMLA). Non-statutory as an organisation. Powers under PMLA are statutory. This distinction — non-statutory agency with statutory powers — is precisely what UPSC tests.
NIA (National Investigation Agency)	NIA Act, 2008 — STATUTORY	NIA is actually STATUTORY (created by NIA Act 2008). Commonly confused as non-statutory. Investigates terror offences. Can investigate across states without state consent — key distinction from CBI. Often planted in "non-statutory" option lists to catch students.
National Human Rights Commission	Protection of Human Rights Act, 1993 — STATUTORY	Also sometimes assumed to be constitutional. It is statutory. Included here to clear the confusion cluster: NHRC = statutory, NIA = statutory, CBI = non-statutory, NITI Aayog = non-statutory. Know these four precisely.
National Security Council (NSC)	Executive order, 1998	Apex body for national security strategy. PM chairs it. Non-statutory. Not to be confused with

		NSA (National Security Adviser) who serves as its secretary.

NOTE: NIA is statutory (NIA Act 2008). CBI is non-statutory (executive resolution). This is the single most-confused pair in this topic. NIA can operate across states without consent; CBI needs state consent or SC/HC order.

ARTICLE → BODY MATCHING — THE EXAM FORMAT EXACT

This is the format UPSC uses most. Fix these article numbers. They do not change.

Article	Body	Key Fact About This Article
76	Attorney General of India	First Law Officer of India. Appointed by President. Must be qualified as SC judge. Holds pleasure of President (no fixed tenure).
148	Comptroller & Auditor General	Salary charged to Consolidated Fund. Removal same as SC judge. Cannot hold further office after retirement.
165	Advocate General of State	State equivalent of AG. Appointed by Governor. Right of audience in all courts of state.
263	Inter-State Council	Discretionary body — President may constitute it if public interest requires. Not permanent. Sarkaria Commission recommended making it permanent.
280	Finance Commission	Constituted every 5 years by President. Recommends Centre–state tax sharing, grants-in-aid, disaster management finance. Recommendations advisory.
315–323	UPSC and State Public Service Commissions	Art. 315: Establishes UPSC and SPSCs. Art. 317: Removal of UPSC Chairman/members by President on SC inquiry. Art. 320: Functions of UPSC. Art. 323: UPSC reports to President annually.
324	Election Commission of India	Superintendence of all elections to Parliament, State Legislatures, President and VP. CEC removal = SC judge removal. EC removal on CEC recommendation only.
338	National Commission for Scheduled Castes	Investigates safeguards for SCs. Civil court powers. Reports to President annually. Misread as 338A by students.
338A	National Commission for Scheduled Tribes	Separated from NCSC by 89th Amendment 2003. Same powers as NCSC. Reports submitted to President.
338B	National Commission for Backward Classes	Added by 102nd Amendment 2018. Gave constitutional status to NCBC. Previously statutory under BC Act 1993. This transition is a frequently tested fact.
340	Commission for Backward Classes (Presidential)	President may appoint a commission to investigate conditions of OBCs. Kaka Kalelkar (1953), Mandal Commission (1978–80) constituted under this article.

350B	Special Officer for Linguistic Minorities	Appointed by President. Reports on linguistic minorities' safeguards. Reports to President, laid before each House. Added by 7th Amendment 1956.

INDEPENDENCE MECHANISMS — WHAT UPSC ACTUALLY TESTS WITHIN BODIES

Mechanism	Which Bodies	Exact Rule — Exam Ready
Salary charged to Consolidated Fund	President, VP, SC judges, HC judges, CAG, UPSC Chairman/members, ECI (post-91st Amendment)	Cannot be reduced by Parliament through voting. This insulates these bodies from legislative pressure. Parliament may discuss but cannot vote to cut. UPSC tests "whose salary is NOT charged to Consolidated Fund" — know the exceptions.
Removal only by SC/HC inquiry	CAG (Article 148), UPSC Chairman/members (Article 317), CEC (Article 324)	President refers matter to SC (or HC for SPSC). SC/HC inquires and reports. President removes only if report recommends. Not a parliamentary impeachment — judicial inquiry. CEC removal = SC judge = address of Parliament + SC inquiry.
Non-reappointment after tenure	UPSC Chairman/members, Election Commissioners	Prevents post-tenure favours influencing current decisions. UPSC members: ineligible for any further employment under govt of India. Election Commissioners: ineligible for further appointment by government.
Fixed tenure	UPSC: 6 years or age 65 (whichever earlier). ECI: 6 years or age 65. CAG: 6 years or age 65. Finance Commission: not fixed by Constitution — reconstituted every 5 years.	UPSC Chairman serving as Acting Chairman retains protections of the Chairman's position. Acting CEC gets CEC's protections. The protection follows the acting role, not the substantive designation.
Asymmetric removal — ECI	Election Commission only	CEC: removed only like SC judge. Election Commissioners (other than CEC): can be removed on recommendation of CEC by President. This asymmetry was designed to make CEC the dominant, protected figure. UPSC has tested: "All members of the Election Commission have the same security of tenure" — FALSE.

STATEMENT I / II PRACTICE PAIRS — CONSTITUTIONAL BODIES

Work through each pair before reading the answer. These are calibrated to the difficulty level of 2022–2025 papers.

Statement I	Statement II	Answer & Why
The Constitution of India does not fix the number of members of the Election Commission.	The size of the Election Commission is determined by an Act of Parliament.	I is TRUE. II is FALSE — the size is decided by the President (not Parliament). There is no Act mandating the number. Answer: (c). 2023 PYQ-level question.
The Comptroller and Auditor General of India does not control the funds of the Union Government.	The CAG only audits the accounts after expenditure has occurred and does not have pre-expenditure approval powers.	Both TRUE. II correctly explains I. Answer: (a). CAG is a post-facto auditor — the "Comptroller" name is misleading in India. CAG does not pre-approve any spending.
The Finance Commission's recommendations are binding on the Central Government.	The Finance Commission is a constitutional body established under Article 280.	I is FALSE — FC recommendations are advisory only. II is TRUE. Answer: (d). Government may accept, modify, or reject FC recommendations. Constitutional status does not make recommendations binding.
NHRC cannot directly investigate human rights violations committed by the armed forces.	The Protection of Human Rights Act specifically excludes armed forces from NHRC's investigative jurisdiction.	Both TRUE. II correctly explains I. Answer: (a). NHRC can only seek a report from the Ministry of Defence — it cannot investigate directly.
The Central Bureau of Investigation is a statutory body created under the Delhi Special Police Establishment Act, 1946.	The CBI was constituted by an executive resolution and derives its investigative powers from the DSPE Act.	I is FALSE. II is TRUE. Answer: (d). CBI was created by executive order, not by the DSPE Act. The DSPE Act provides powers, not existence. Non-statutory body with statutory powers.
The National Commission for Backward Classes is now a constitutional body.	The 102nd Constitutional Amendment Act of 2018 inserted Article 338B, giving the NCBC constitutional status.	Both TRUE. II correctly explains I. Answer: (a). Pre-2018, NCBC was statutory. This transition is one of the most reliable Polity questions for 2026.
All members of the Election Commission of India enjoy the same security of tenure.	Election Commissioners other than the CEC can be removed by the President on the recommendation of the Chief Election Commissioner.	I is FALSE. II is TRUE. Answer: (d). The asymmetry is the point — CEC = SC-judge-level protection; ECs = lower bar. A classic UPSC trap on the ECI.

NOTE: When UPSC says "constitutional body," verify whether the body itself is created by the Constitution OR merely regulated by it. Some bodies are mentioned in the Constitution but created by statute (e.g., many tribunals under Part XIV-A).

RECENT IN NEWS (2024–2025) — PRELIMS 2026 ANGLE

Development	Why Relevant for 2026 Prelims
16th Finance Commission (constituted 2024)	Constituted under Article 280 for 2026–31 period. Chairman: Arvind Panagariya. Will recommend devolution share and grants for next 5 years. Test potential: "16th FC is chaired by the Finance Minister" — FALSE (independent economist chairs it, not a minister).
ECI — Election Commissioners (Amendment) Act 2023	Changed the appointment committee for Election Commissioners. Earlier: President on PM's advice. Now: Selection Committee of PM + Home Minister + Leader of Opposition (LoP). SC had asked for independent panel in Anoop Baranwal case (2023). This Act changed the composition. UPSC 2026 potential: statement questions on ECI appointment process.
Lokpal — new members appointed 2024	Justice A.M. Khanwilkar appointed as Lokpal Chairperson (2022, retired 2024). New judicial and non-judicial members appointed 2024. Tests: Lokpal is statutory (Lokpal Act 2013), covers whom, cannot investigate sitting SC judges or PM on certain matters.
NCBC — 102nd Amendment implementation	Post-102nd Amendment, power to identify OBCs for central list shifted from states to Centre (President on NCBC advice). States can identify OBCs for state list only. This shift in federal balance has been challenged and is before courts. UPSC may test the pre- vs post-102nd Amendment position.
CBI consent withdrawal by states	Multiple states (Kerala, Punjab, Jharkhand, West Bengal, Telangana) withdrew general consent to CBI — meaning CBI needs specific case-by-case permission. Tests: general vs specific consent, constitutional basis for consent under DSPE Act. NIA contrast: NIA does NOT need state consent.
Competition Amendment Act 2023	CCI now reviews M&A deals above ₹2,000 crore deal value (not just asset/turnover threshold). "Gun-jumping" provisions strengthened. Tests: CCI is statutory (Competition Act 2002), its jurisdiction, SAT as appellate body.

★ PYQ Insight:

2024 — Matching: bodies with their nature (Constitutional / Statutory / Neither). NHRC appeared as Statutory (correct — Protection of Human Rights Act 1993). CBI appeared as neither (correct — DSPE Act, not a statutory commission). Finance Commission appeared as Constitutional (correct — Article 280). Trap: students mark CBI as Statutory.

2023 — Statement I/II: "The Election Commission of India is a multi-member body. The Constitution mandates that the Election Commission must have more than one member." I TRUE (it is multi-member since 1993). II FALSE — the Constitution does not mandate a number; it only says "Election Commission of India." President decides the composition. Answer: (c).

2022 — Matching: constitutional provisions with bodies. Article 315 → UPSC and SPSCs. Article 324 → Election Commission. Article 148 → CAG. Article 280 → Finance Commission. Article 338 → NCSC. Students who confused 338 (NCSC) with 338A (NSTC) lost the mark.

2021 — "Which of the following is/are Constitutional bodies?" Options: NHRC, CVC, Finance Commission, UPSC. Correct answer: Finance Commission and UPSC only. NHRC = Statutory. CVC = Statutory. Classic constitutional vs statutory trap with four plausible options.

2017 — Tested CAG's jurisdiction: whether CAG can audit accounts of private companies receiving government grants above a threshold. Answer: YES, if the grant exceeds ₹25 lakh and constitutes 75%+ of income. Students who thought CAG was limited to government-owned entities lost this.

Recurring trap — NITI Aayog, CBI, ED, and NIA are non-statutory. Planning Commission was also non-statutory (executive resolution). UPSC regularly plants these among statutory options. Know: if it was created by a Cabinet resolution or executive notification, it is non-statutory regardless of how powerful it is.

3 THINGS UPSC TESTS FROM THIS TOPIC

- **Constitutional vs Statutory vs Non-Statutory — applied instantly to any body.** UPSC does not announce the type in the question — it lists four bodies and asks which is constitutional, or which can be abolished without a constitutional amendment. The one-line test works for every body: created by the Constitution itself = constitutional; created by an Act = statutory; created by executive order = non-statutory. Apply this to every body in this document. The trap group is: NHRC (statutory, not constitutional), CBI (non-statutory, despite DSPE Act), NIA (statutory, unlike CBI), NITI Aayog (non-statutory), NCBC (constitutional since 2018, was statutory before).
- **Article numbers — memorise the ones UPSC uses in matching pairs.** The six that appear most frequently: Article 76 (AG), 148 (CAG), 280 (Finance Commission), 315–323 (UPSC), 324 (ECI), 338/338A/338B (national commissions for SC/ST/OBC). Get these wrong and you lose matching pair questions where only one pair is wrong. The 338→NCSC, 338A→NCST, 338B→NCBC sequence has appeared in three of the last five papers in some form. The 102nd Amendment 2018 (338B, constitutional status to NCBC) is the most recent constitutional change in this cluster.
- **Independence mechanisms — who has what protection and which bodies do not.** UPSC asks: "Which of the following does NOT have its salary charged to Consolidated Fund?" or "Removal of which body requires a Supreme Court inquiry?" Know the full set of protected bodies for each mechanism. The ECI asymmetry (CEC protected like SC judge, Election Commissioners removed on CEC's recommendation) appears in Statement I/II format. The non-reappointment rule for UPSC members and ECs is the least-revised independence protection and therefore the one most likely to appear as a wrong option.

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